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Contract | अनुबंध
S.O. No. 00148 dt. 25.01.2023

Contract No | अनुबंध क्रमांक: GEMC-511687789594650

Generated Date | अनुबंध तिथि: 24-Jan-2023

Bid/RA/PBP No. | बोली/आरए/पीबीपी संख्या: [GEM/2022/B/2702497](#)

Organisation Details संगठन विवरण Type प्ररूप : Central PSU Ministry मंत्रालय : Ministry of Coal Department विभाग : Materials Management Organisation Name संगठन का नाम : Central Mine Planning and Design Institute Limited Office Zone कार्यालय क्षेत्र : Jharkhand		Buyer Details खरीदार विवरण Designation पद : Asst Manager Contact No. संपर्क नंबर : 0651-2792313- Email ID ईमेल आईडी : ambrish.chaubey@nic.in GSTIN जीएसटीआईएन : 20AAACC7475N1ZI MATERIAL MANAGEMENT DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI- 834008, RANCHI, JHARKHAND-834008, India Address पता :				
Financial Approval Detail वित्तीय स्वीकृति विवरण IFD Concurrence आईएफडी सहमति : Yes Designation of Administrative Approval प्रशासनिक अनुमोदन का पदनाम : GM (MM) Designation of Financial Approval वित्तीय अनुमोदन का पदनाम : CM (Finance)		Paying Authority Details भुगतान प्राधिकरण विवरण Role : PAO Payment Mode भुगतान का तरीका : GPA - Challan Designation पद : Chief Manager Finance Email ID ईमेल आईडी : sb.tiwari@nic.in GSTIN जीएसटीआईएन : 20AAACC7475N1ZI FINANCE DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI- 834008, RANCHI, JHARKHAND-834008, India Address पता : Payments shall be made to the seller within 21 days of issue Payment Timelines भुगतान of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10-days समयसीमा : time as provided in clause 12 of GeM GTC)				
Seller Details विक्रेता विवरण GeM Seller ID जेम विक्रेता आईडी : B23B180000096647 Company Name कंपनी का नाम : WIZERTECH INFORMATICS PRIVATE LIMITED Contact No. संपर्क नंबर : 09831012321 Email ID ईमेल आईडी : subhankarc@wizertech.in Address पता : Unit 904, Plot 07, Block- BP, Ahuicl Eco Station, Sector V, Salt lake, Kolkata, WEST BENGAL-700091, - MSME verified एमएसएमई सत्यापित : No MSME Registration number एमएसएमई पंजीकरण संख्या : - GSTIN जीएसटीआईएन : 19AAACW5570G1Z4						
*GST / Tax invoice to be raised in the name of जिसके नाम के पक्ष में GST/TAX इनवॉइस पेश किया जाएगा - Consignee						
Product Details उत्पाद विवरण						
#	Item Description आइटम विवरण	Ordered Quantity आइटम विवरण	Unit इकाई	Unit Price (INR) इकाई मूल्य (INR)	Tax Bifurcation (INR) कर विभाजन (INR)	Price (Inclusive of all Duties and Taxes in INR) मूल्य (INR में सभी शुल्क और कर सहित)
1	Product Name उत्पाद का नाम : hp Workstation With Intel Core i9 12900 Processor 64 GB Brand ब्रांड : hp Brand Type ब्रांड प्रकार : Registered Brand Catalogue Status कैटलॉग की स्थिति : OEM verified catalogue Selling As कैसे बेचा जा रहा है : OEM verified Reseller Category Name & Quadrant श्रेणी का नाम और चतुर्थांश : Workstation (Q2) Model मॉडल : HP Z2 G9 Tower i9 12900 641Pcie1HDD5 Win11P T600 4GB ODD wifi 23.8" HDMI with adapter HSN Code एचएसएन कोड : HSN not specified by seller	30	pieces	323,196	NA	9,695,880
Total Order Value कुल ऑर्डर मूल्य (in INR)						9,695,880
Consignee Detail परेषिती विवरण						
S.No क्र.सं.	Consignee परेषिती	Item वस्तु	Lot No. लॉट नंबर	Quantity मात्रा	Delivery Start After दिनांक के बाद डिलीवरी शुरू	Delivery To Be Completed By वितरण पूरा कब

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1	Designation पद : - Email ID ईमेल आईडी : jc.joshi@coalindia.in Contact संपर्क : 091-8987788900- GSTIN जीएसटीआईएन : 20AAACC7475N1ZI Address पता : MATERIAL MANAGEMENT DEPARTMENT, CENTRAL MINE PLANNING AND DESIGN INSTITUTE LIMITED, GONDWANA PLACE, KANKE ROAD, RANCHI- 834008, RANCHI, JHARKHAND-834008, India	hp Workstation With Intel Core i9 12900 Processor 64 GB	-	30	24-Jan-2023	24-Apr-2023
Product Specification for hp Workstation With Intel Core i9 12900 Processor 64 GB						
Specification विनिर्देश	Sub-Spec उप-विनिर्देश	Value मूल्य				
Processor	Processor Make	Intel				
	Processor Generation	12				
	Number of Cores per Processor	16				
	Processor Base Frequency (GHz)	2.4				
	Processor Turbo Frequency (GHz)	5.1				
	Processor Description	Intel Core i9				
	Processor Number	Intel Core i9 12900				
	Number of sockets available on the motherboard	1				
	Number of Sockets populated with the Processors	1				
	Cache (MB)	30				
	Out of Band Management	Intel vPro				
Type	Form Factor	Desktop				
Motherboard	Chipset Number	Intel W680				
	Expansion Slots (PCIe x 1) (Number)	1				
	Expansion Slots (PCIe x 4) (Number)	1				
	Expansion Slots (PCIe x 8) (Number)	0				
	Expansion Slots (PCIe x 16) (Number)	2				
	Expansion Slots (PCI) (Number)	0				
Graphics	Graphics Type	Dedicated/Discrete				
	Number of Graphic Cards	1				
	Graphic Card Description	NVIDIA T600 4GB				
Operating System	Operating System (Factory Pre-Loaded)	Windows 11 Professional				
	Recovery Image Media	CD from the OEM / Stored in Partition of the Hard Disk / USB Drive from the OEM / On Line / Cloud				
	OS Certification	Windows,Redhat Linux				
Applications	Applications Compatible with the Workstation (Requisite document may be furnished as and when demanded by the buyer)	Avid Media Composer,Dassault Systèmes SolidWorks,Dassault Systèmes CATIA,PTC Creo,Siemens NX				
Memory	RAM Type	DDR5				
	RAM Speed (MHz)	4800				
	Type of Memory	Non ECC				
	RAM Size (GB)	64				
	Total Numbers of DIMM Slots Available	4				
	Number of DIMM Slots Populated	2				
	RAM Expandability upto using spare DIMM Slots (GB)	128				
Primary Storage /Boot Drive	Type of Drives used to populate the internal Bays	PCIe				
	Number of Drives	1				
	RAID for Operating System	NA				
	Capacity of each Drive (GB)	1024				
	Type of Drives used to populate the Internal Bays	SATA				
	Total number of Internal Bays available for SATA Drive	1				

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Secondary Storage	Number of Internal Bays populated with SATA Drive	1
	Each SATA Drive Capacity (GB)	1000
	Speed of each SATA Drive (RPM)	7200
	Total SATA Drive Capacity (GB)	1000
	Total number of Internal Bays available for SAS Drive	0
	Number of Internal Bays populated with SAS Drive	0
	Capacity of each SAS Drive (GB)	0
	Speed of each SAS Drive (RPM)	0
	Total SAS Drive Capacity (GB)	0
	Total number of Internal Bays available for SSD	0
	Number of Internal Bays populated with SSD Drive	0
	Capacity of each SSD Drive (GB)	0
	Total SSD Capacity (GB)	0
	Total number of Internal Bays available for PCIe SSD	1
	Number of Internal Bays populated with PCIe Drive	1
	Capacity of each PCIe Drive (GB)	1024
	Total PCIe Drive Capacity (GB)	1024
	Class of PCIe Drives	Class 40
RAID	RAID level	0,1
	Number of RAID Controller Ports	4
	Speed of RAID Controller Ports (Gbps)	6
	RAID Controller Cache (GB)	0
Connectivity	Type of Ethernet Ports	Single Gigabit NIC 10/100/1000
	Number of Ethernet Ports	1
	Wireless Connectivity	Yes
	If Yes, Type of Wireless Connectivity	Wi-Fi 6E AX211 BT 5.2
	Bluetooth Connectivity	Yes
	If Yes, Version of Bluetooth Available	5
Ports	Number of USB Version 2 Point 0 Ports	3
	Number of USB Version 3 point 0 / 3 point 1, Gen 1 Ports	1
	Number of USB Version 3 point 1, Gen 2 Ports	6
	Number of USB Type C Ports	0
	Number of VGA Ports	0
	Number of HDMI Ports	1
	Number of Mini DP Ports	3
	Number of DP Ports	1
Display	Display Availability	Monitor
	Display Size (cm)	58- 61
	Display Type	Non Touch
	Panel Type	Flat
	Panel Technology	IPS
	Display Resolution (Pixels)	1920x1080
	LED Backlit	Yes
	TCO Compliance for Monitor	TCO 07
	Colour Gamut	72% Color Gamut
	Monitor Stand	Height Adjustable
Power	Maximum Power (Watts)	700
	Minimum Power Efficiency (%)	90

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Input Devices	Power Management Unit	Yes
	Redundant Power Supply	No
	Mouse Connectivity, If available	Wired
	Type of Mouse, If available	Optical Scroll
	Keyboard Connectivity, if available	Wired
Generic	Type of Keyboard, if available	Standard
	Type of Keyboard in case of Mobile Workstation	NA
	Optical Drive	DVD R/W
	Number of External Bays	2
	Security	H/W Based
	Docking Station for Mobile Workstation	No
	Availability of Bundled Software	Yes
	Type of Bundled Software	Remote Collaboration Software & Performance Advisor
Certification	Finger Print Reader in case of Mobile Workstation	NA
	Carry Case in case of Mobile Workstation	NA
	BIS Registration under CRS of Meity (Requisite certificate may be furnished as and when demanded by the buyer)	Yes
	BIS Registration Number and its Validity	R-61001260
Operating Conditions	ROHS Compliance	Yes
	Other Certification Available (Requisite certificate may be furnished as and when demanded by the buyer)	UL/EN/CE/IEC-60950 for Safety,CE/FCC for EMC & Immunity,UL,CE,FCC,WEEE for Waste management
	Minimum Operating Temperature (Degree C)	5
	Maximum Operating Temperature (DEgree C)	35
Warranty	Minimum Operating Humidity (%RH)	10
	Maximum Operating Humidity (%RH)	85
Warranty	Battery Warranty in case of Mobile Workstation	0
	On Site OEM Warranty (Year)	5

Buyer Defined Additional Specification for खरीदार परिभाषित अतिरिक्त विशिष्टता के लिए hp Workstation With Intel Core i9 12900 Processor 64 GB

Specification विनिर्देश	Value मूल्य
i) Motherboard, ii) Graphics Card, iii) Processor	i) Original Intel Motherboard, or OEM Motherboard with the Manufacturer's name/logo embossed on the motherboard. ii) 4GB or higher, future ready for 24 GB. iii) Intel Core i9 12th generation or higher.
i) PC, Mouse & Keyboard ii) Web Cam, audio in, audio out iii) Type-C port	i) CPU, Monitor, Mouse & Keyboard should be of same OEM make. ii) FHD or higher Web Cam, audio in, audio out, all integrated with monitor. iii) Type-C port should be available
i) Monitor and ii) Certification/ Compliance	i) IPS LED Backlit or higher ii) BEE/Energy Star, TCO 08 or higher. iii) UL/STQC "S" mark, RoHS Compliance. iv) IPv6 ready & Windows OS Certification.
i) Cache memory, ii) Type of RAM, iii) additional SSD Capacity (GB)	i) 16 MB or higher, ii) DDR5 or higher, iii) System shall support additional 2 x M.2 SSD
Onsite Support Services	The Workstations will be deployed at CMPDI's Offices in Ranchi, Asansol, Nagpur, Bilaspur, Singrauli & Bhubaneswar where the on-site services should be available.

Terms and Conditions | नियम और शर्तें

1. General Terms and Conditions-

1.1 This contract is governed by the [General Terms and Conditions](#), conditions stipulated to this Product/Service as provided in the Marketplace.

1.2 This Contract between the Seller and the Buyer, is for the supply of the Goods and/ or Services, detailed in the schedule above, in accordance with the General Terms and Conditions (GTC) unless otherwise superseded by Goods / Services specific Special Terms and Conditions (STC) and/ or BID/Reverse Auction Additional Terms and Conditions (ATC), as applicable

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Buyer Added Bid Specific Terms and Conditions-

2.1 Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25% of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

2.2 Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

2.3 Generic

Bidders shall quote only those products (Part of Service delivery) in the bid which are not obsolete in the market and has at least 7 years residual market life i.e. the offered product shall not be declared end-of-life by the OEM before this period.

2.4 Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

2.5 Generic

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

2.6 Generic

Data Sheet of the product(s) offered in the bid, are to be uploaded along with the bid documents. Buyers can match and verify the Data Sheet with the product specifications offered. In case of any unexplained mismatch of technical parameters, the bid is liable for rejection.

2.7 Generic

Installation, Commissioning, Testing, Configuration, Training (if any - which ever is applicable as per scope of supply) is to be carried out by OEM / OEM Certified resource or OEM authorised Reseller.

2.8 Generic

IT equipment shall be IPv6 ready from day one.

2.9 Generic

Malicious Code Certificate:

The seller should upload following certificate in the bid:-

(a) This is to certify that the Hardware and the Software being offered, as part of the contract, does not contain Embedded Malicious code that would activate procedures to :-

- (i) Inhibit the desires and designed function of the equipment.
- (ii) Cause physical damage to the user or equipment during the exploitation.
- (iii) Tap information resident or transient in the equipment/network.

(b) The firm will be considered to be in breach of the procurement contract, in case physical damage, loss of information or infringements related to copyright and Intellectual Property Right (IPRs) are caused due to activation of any such malicious code in embedded software.

2.10 Generic

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

2.11 Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

2.12 Generic

The successful bidder has to supply all essential accessories required for the successful installation and commissioning of the goods supplied. Besides standard accessories as per normal industry practice, following accessories must be part of supply and cost should be included in bid price: All accessories such as Power Chord shall be provided to make the system fully operational. All drivers required for proper integration of components should be supplied by the vendor. A complete Offline Diagnostics and Asset Discovery software should be supplied along with the system..

2.13 Generic

Upload Manufacturer authorization: Wherever Authorised Distributors are submitting the bid, Manufacturers Authorisation Form (MAF)/Certificate with OEM details such as name, designation, address, e-mail Id and Phone No. required to be furnished along with the bid.

2.14 Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

2.15 Inspection

Nominated Inspection Agency: On behalf of the Buyer organization, any one of the following Inspection Agency would be conducting inspection of stores before acceptance:

Pre-dispatch Inspection at Seller Premises (applicable only if pre-dispatch inspection clause has been selected in ATC): Not applicable

Post Receipt Inspection at consignee site before acceptance of stores: GM (Geomatics) or his authorized representative

2.16 Forms of EMD and PBG:

Bidders can also submit the EMD with Account Payee Demand Draft in favour of CMDPIL payable at Ranchi.

Bidder has to upload scanned copy / proof of the DD along with bid and has to ensure delivery of hardcopy to the Buyer within 5 days of Bid End date / Bid Opening date.

2.17 Forms of EMD and PBG:

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of CMDPIL payable at Ranchi. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the

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Original to be submitted to the Buyer within 15 days of award of contract.

2.18 Scope of Supply:

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

2.19 Certificates:

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2.20 Service & Support:

Dedicated /toll Free Telephone No. for Service Support : BIDDER/OEM must have Dedicated/toll Free Telephone No. for Service Support.

2.21 Service & Support:

Escalation Matrix For Service Support : Bidder/OEM must provide Escalation Matrix of Telephone Numbers for Service Support.

2.22 Warranty:

Warranty period of the supplied products shall be as given in specifications from the date of final acceptance of goods or after completion of installation, commissioning & testing of goods (if included in the scope of supply), at consignee location. OEM Warranty certificates must be submitted by Successful Bidder at the time of delivery of Goods. The seller should guarantee the rectification of goods in case of any break down during the guarantee period. Seller should have well established Installation, Commissioning, Training, Troubleshooting and Maintenance Service group in INDIA for attending the after sales service. Details of Service Centres near consignee destinations are to be uploaded along with the bid.

2.23 Buyer Added Bid Specific ATC:

Buyer Added text based ATC clauses

Procurement against this tender shall be made only for proven items from established & proven sources, who fulfils the following criteria:

(i) Offers of the Bidders, who are past suppliers to Mining Industry and / or other Industries (Private or Government Department/ Public Sector Undertaking - Indigenous or Global), will be considered eligible for participation, if they have supplied* the tendered item / similar item, during the preceding 5 years from the date of tender opening and their performance has been found satisfactory.

***For consumables/Spares/Software: At least 20 % of required quantity of this tender.**

***For Equipment: At least one number of the Equipment.**

(i)(a) Bidders, who are past suppliers to CMPDI for the tendered / similar item, should upload copies of supply orders in support of their eligibility as stipulated above.

(i)(b) Bidders, who are new for CMPDI for the tendered / similar item, should upload copies of supply orders along with an undertaking, on the Letter Head of the Bidder, that the said supply order has been successfully executed and performed satisfactorily for one year in support of their eligibility as stipulated above.

(ii) Bidders are required to submit a Self-Certificate in the following format, along with the Proof of payment against the Purchase Order(s)/ Rate Contract(s) and Commissioning Certificate(s) (in case of Equipment, P&M, etc. where installation & commissioning is required):

"The items covered in the Purchase Order(s)/ Rate Contract(s) copies enclosed with our offer have been fully executed and have performed satisfactorily as per the provisions of respective Purchase Order(s)/ Rate Contract(s) for minimum one year from the date of commissioning and all the complaints/ claim(s) lodged by the purchaser, if any, have been attended to and no complaints/ claim(s) are pending."

In case, any specific Purchase Order(s) has/have not been fully executed and any complaint/claim is pending, then details of such cases to be categorically mentioned with the reasons thereof so that decision making is in clear perspective without any hidden facts in the subject matter.

The authenticity of the self-certificate as well as other documents submitted/uploaded by the bidder will solely be their responsibility and appropriate action will be taken by CMPDI if it is subsequently found to be misleading/false/forged.

Note: Similar Equipment shall be such Equipment, which fulfils the following:

(a) Performs almost identical operations as the quoted model.

(b) Should be equal to or higher than the tendered capacity.

(c) Uses sub-components, sub-systems and major assemblies of substantially similar design & construction to the model quoted - only rating specifications may differ (Lower or Higher)

(iii) Acceptance Criteria for similar Equipment:

In case, the bidder claims provenness of the quoted model based on similar equipment, the similar equipment should have performed satisfactorily for a minimum period of one year from the date of commissioning and the quoted model should have worked for a minimum period of six months from the date of commissioning within the window period of 5 years.

In case the bidder claims provenness of the quoted model based on similar equipment and the similar equipment has performed satisfactorily for a minimum period of one year from the date of commissioning, but the quoted model has not worked for a minimum period of six months, the offer may be accepted subject to the conditions mentioned under here under:

a. The quoted model should have been designed, manufactured and supplied to the end-user but has not been commissioned or if commissioned, has not completed six months of operation after the commissioning. Documentary evidence for past supply of the quoted model is to be provided along with the offer.

or

The quoted model is an upgraded version of the existing model with improved and the latest drive line / system

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one, and has not been manufactured and/or supplied earlier. In such case, the basic model should remain the same. Documentary evidence of past supply of the existing model whose upgraded version has been offered, is to be provided along with the offer.

b. (i) The successful bidder will be allowed to supply the quantity (or quantity of the first lot) as indicated in Schedule of Requirement. (ii) The firm shall be required to furnish additional Performance Bank Guarantee of 100% of the total landed 'value of equipment along with spares & consumables for warranty period for the quantity.

c. On satisfactory performance of all the equipment/first lot (if applicable) for one year from the date of commissioning [to be certified by the Head of the User Deptt.], clearance shall be obtained from the order issuing authority for supply of the remaining quantity, if any, as per Schedule of Requirement.

d. The additional 100% Performance Bank Guarantee shall be returned only after satisfactory performance of all the equipment/first (if applicable) lot for one year from the date of commissioning.

e. The original 10% PBG for the total contract value will be retained for entire contract period.

Note:

In case of unsuccessful performance of the equipment/first lot (if applicable) supplied by the firms who qualify as per above clauses, the following shall be applicable:

i) The 100% Additional Performance Bank Guarantee for the equipment/first lot (if applicable) shall be encashed by CMPDI. Consequent upon the encashment of the 100% Bank Guarantee due to non-achievement of stipulated minimum availability percentage, the Supplier shall take back the equipment at no cost to the Purchaser and the contract for the balance quantity shall be cancelled.

ii) The original 10% performance bank guarantee shall be returned to the supplier after recovery of penalty for non-achievement of guaranteed availability in respect of equipment/first lot (if applicable).

iii) The performance of any individual equipment/first lot (if applicable) under this clause shall not be considered for provenness in future tenders of CIL & subsidiaries for any capacity of this type of equipment.

iv) In case of equipment imported under Project Concessional Duty (PCD), the amount of Customs Duty Concession i.e. the differential amount of Normal Customs Duty (NCD) and PCD availed during import shall be recovered from the supplier with interest for refund to the Customs Authorities. The supplier shall deposit such amount to the purchaser on demand else the same shall be recovered from the Security Deposit Bank Guarantee / Performance Bank Guarantee of the supplier.

Prior experience - prior turnover criteria for Startup, Micro and Small Enterprises (MSEs) in Public Procurement:

(i) Prior experience and prior turn over criteria is not applicable for Startup & MSEs in respect of either of the following situations and no further documents regarding proven-ness will be required to be submitted by this category of Bidders.

a. If Bidders have submitted documents to prove the Startup / MSE status for the tendered item without certificate towards quality, assurance and capability from some authority like MSME, NSIC, etc., the Tender Inviting Authority, if required, may assess the techno-commercial capability of the vendors to manufacture and deliver goods as per the prescribed quality and technical specification before awarding contract to them. For this purpose, a 'PROFORMA for Equipment and Quality Control' (refer Annexure-I attached as Buyer uploaded ATC document) has been enclosed in the tender documents and such MSEs/ STARTUPS should submit the details of plant & machinery, quality control arrangements, etc., in the above PROFORMA along with their bids for verification of their technical capability.

If required, a techno-commercial team of the organization may visit the manufacturing unit of the vendor without any undue delay for quick finalization of the tenders.

b. If favorable technical capability reports obtained earlier on such firms for supply of the item in question as per the required specification is available, these may be considered, provided date of such reports is not more than one year from the date of opening of bids.

In case there is deficiency in technical capacity of the firm, the same shall be communicated to them by the Tender Inviting Authority for improvement in the quality of their product for future tenders, clearly indicating that their offer cannot be considered for relaxation against the tender in question and to avoid any future complications. The issues relating to Technical capability may be decided by the Head of the Technical Department.

c. If Bidders have submitted documents to prove the startup / MSE status for the tendered item and whose products are ISI marked / DGMS approved / covered under DGS&D Rate Contracts on them / current holding Rate Contracts with CIL or its Subsidiary for supply of the tendered item / supplied and proven in CIL or its Subsidiary Companies / Proven product of the Ancillary unit of a Subsidiary Company of CIL, they will be required to submit the applicable related documents, duly self-attested, for relaxation: -

• Valid BIS Marking License for the quoted items on them.

OR

• Rate contract as issued by CIL / any other Subsidiary for the quoted items on them.

OR

• Valid DGMS Approval certificate for the quoted items on them.

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• Proven Ancillary certificate issued by Subsidiary Companies for the quoted items on them.

The Document (s) / Certificate (s), by the Bidders for ISI marking and DGMS approval for any relaxation should be valid as on date of tender opening and a copy of such document / certificate valid as on date of supply, duly self- attested, must accompany their bill(s).

(i) N.B.:

a. Definition and Eligibility of Startup shall be in line with OM vide letter no. F-20/2/2014 PPD (pt.) Dtd. 25.07.2016 of Under Secretary to GOI, Ministry of Finance, Department of Expenditure, Procurement Policy Division, New Delhi, with subsequent amendments, if any.

b . Definition of MSEs shall be as per Public Procurement 2012, with subsequent amendments, if any.

Additional Buyer Specific terms & conditions :-

- 1) Onsite Comprehensive Warranty services should be provided by the seller at all the consignees end (CMPDI(HQ) & all Regional Institutes) in co-ordination with the OEM.
- 2) Comprehensive Warranty should include supplies of spares, services, software support and patch management for OS (formatting of HDD & reloading of OS if required), for maintaining availability of more than 95%.
- 3) Scope of installation will include logical partitioning of HDD, OS and Application S/W (MS Office, Anti Virus etc.) installation, IP address configuration, Data transfer from old PC (if required) etc.
- 4) Details of Authorized Service Centres such as Complete Address, Name of the Contact Person(s) with Phone Numbers from where the Bidder will provide on-site comprehensive warranty services for the machines installed at the respective location (CMPDI(HQ) & all Regional Institutes), is to be furnished by the bidders in their letter head.
- 5) Breakdown should be attended within twenty four (24) hours from the receipt of information at the local office of the Supplier.
- 6) 95% availability (uptime) for each System on monthly basis should be guaranteed. If the machine downtime is expected to continue over for a long time, the defective System / Components shall be replaced by a suitable System / Components of the same or higher configuration.
- 7) System downtime will be reckoned only during the working hours on working days. Down time beyond these hours on a working day would be excluded. For example, if the down time starts at 12.00 hours on a day and extends upto 11.00 hours the following working day, the down time would be calculated as below:
 - a) For Working Hours : 09:30 hrs. - 17:30 hrs.(8 hours)
First day from 12.00 hrs to 5.30 hrs, equal to 5.30 hours
Second day from 9.30 hrs to 11.00 hrs, equal to 1.30 hours
Total down time = 7 hours
 - b) For Working Hours : 10:00 hrs. - 17:00 hrs.(7 hours)
First day from 12.00 hrs to 5.00 hrs, equal to 5.00 hours
Second day from 10.00 hrs to 11.00 hrs, equal to 1.00 hours
Total down time = 6 hours

- 8) The availability percentage shall be calculated for each calendar month. Penalty will be imposed on pro-rata basis, if the availability falls below 95 % thus

$$\text{Penalty} = \frac{(95\% - \text{Actual availability}) \times (\text{Total Unit Price} / 200)}{95\%}$$

- 9) Actual availability percentage for each machine will becalculated as follows.

$$\text{Actual availability} = \frac{\text{No of working days In the month} \times 8 - \text{Downtime hours during the month}}{\text{No. of working days in the month} \times 8} \times 100$$

No bonus or additional sums shall be payable if the actual availability is more than 95%. Penalty for any month to be imposed will be calculated in the basis of the following table:

Availability percentage (rounded)	Penalty
95% and above	Nil
85% to 94%	As per rate calculated in clause 8 & 9
50% to 84%	Double the calculated amount as per rate calculated in clause 8 & 9
Below 50%	Total Unit Price/ 200

Penalty amount so calculated (monthly), would be communicated to the supplier after the end of each quarter. The supplier may deposit the amount with CMPDI and intimate the same to CMPDI(HQ) Geomatics Division with documentary evidence. Otherwise, CMPDI would have the right to adjust the total accumulated penalty amount against PBG submitted by the vendor after completion of the contract period of 5 years. If at any stage within the contract period the total recoverable accumulated penalty amount crosses the PBG limit, the PBG would be encashed and the vendor would be liable to resubmit another PBG of same value as submitted earlier. The same process would continue till completion of the contract period of 5 years.

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- 10) Uptime will be for the entire system. i.e. in case, part of the system is out of order such that no useful output can be obtained from the system, the total system shall be considered to be under breakdown. If the machine is not bootable, it will be considered as breakdown. Part of the system, as narrated elsewhere in the contract, includes keyboard, mouse, monitor, hard disk drives etc.

2.24 Buyer Added Bid Specific ATC:

Buyer uploaded ATC document [Click here to view the file](#).

Note: This is system generated file. No signature is required. Print out of this document is not valid for payment/ transaction purpose.

नोट: यह सिस्टम जनरेटेड फाइल है। कोई हस्ताक्षर की आवश्यकता नहीं है। इस दस्तावेज़ का प्रिंट आउट भुगतान/लेनदेन उद्देश्य के लिए मान्य नहीं है।

I/16726/2023

Subject: Procurement of 30 nos. High-end Desktop Workstations meant for Geomatics Division of CMPDI HQ, through GeM Portal.

Please find attached herewith supply order copy (contract) placed on M/s. Wizertech Informatics Pvt. Ltd., Kolkata through GeM portal.

Contract no.: GEMC-511687789594650 dated 24-Jan-2023

SAP PO No.: 5100006577 dated 24-Jan-2023

Indenter: Geomatics Division, CMPDI HQ, Ranchi.

(Ambrish Chaubey)
AM (MM)

(Deepak Kumar)
CM (MM)

प्रतिलिपि प्रेषण :-

1. मुख्य सतर्कता अधिकारी, सी एम पी डी आई, राँची ।
2. महाप्रबन्धक (सामग्री प्रबन्धन), सी एम पी डी आई, राँची ।
3. महाप्रबन्धक (जियोमेटिक्स), सी एम पी डी आई, राँची ।
4. महाप्रबन्धक (वित्त), सी एम पी डी आई, राँची ।
5. विभागाध्यक्ष (ई पी एवं सी एम), सी एम पी डी आई, राँची ।
6. डिपो अधिकारी, सीएमपीडीआई, राँची ।
7. सचिव – निदेशक (तक.) (सी आर डी) महोदय के सादर सूचनार्थ ।
8. मास्टर संचिका ।

नोट :- उक्त आदेश जारी करने पर सक्षम अधिकारी का अनुमोदन दिनांक 23.01.2023 एवं वित्तिय सहमति दिनांक 20.01.2023 (द्वारा डायरी संख्या E-790607) को प्राप्त है ।

संदर्भ :- सामग्री प्रबन्धन (क्रय) विभाग के इंडेंट निबंधन संख्या एमएम/इंडेंट/54, दिनांक 07.09.2022 एवं बजट प्रमाण संख्या C/120121/20000060/47/12, वित्तिय वर्ष 2022-23, दिनांक 11.08.2022 ।

Performance Security / ePBG: Applicable in this contract (@ 10 % of contract value for duration of 62 months).

AM (MM)

CM (MM)